EMPLOYMENT AGREEMENT

This Employment Agreement is entered into on 25/01/2025 between:

Quick Ghy Private Limited , a company incorporated under the [Companies Act, 2013] having its registered office at Ulubari, Harabala Road, Bye lane-2, House no-7, Guwahati, 781007 (hereinafter referred to as the "Company", which expression shall, unless it be repugnant to the context or meaning thereof, be deemed to mean and include its successors and permitted assigns) of the FIRST PART;

AND

Lakshya Saxena, son of Mrs. Richa Saxena residing at F-273-A, Pocket-F, L.I.G D.D.A Flats, Near Sai Chowk, Dilshad Garden, DELHI, East Delhi, Delhi 110095(hereinafter referred as the "Intern" which expression shall unless it be repugnant or contrary to the context thereof, mean and include her heirs, legal representatives, successors and permitted assigns) of the SECOND PART;

The Company and the Employee shall hereinafter be individually referred to as "Party" and collectively referred to as "Parties".

WHEREAS:

A. The Company is engaged in the business of service aggregator.
B. The Employee represents that it has the requisite skill set to be employed as a research intern
C. The Parties intend to record the terms of the engagement of the Company and the Employee under this Agreement.
NOW, THEREFORE, in consideration of the mutual covenants and agreements set forth in this Agreement, and for other good and valuable consideration, the sufficiency of which is acknowledged by the Parties, the Parties hereby agree as follows:

1. DEFINITIONS

Unless repugnant to the context, in this Agreement, the expressions mentioned below shall have the meaning as follows:

1.1 "Act" means the Companies Act, 2013, as amended from time to time, or with reference to such sections as are notified and made applicable on the relevant date, the Companies Act, 2013 or any other statutory amendment, re-enactment thereof;

1.2 "Affiliate" shall mean any Person, which, directly or indirectly, Controls, is controlled by or is under common Control with, Company;

1.3 "Agreement" includes the recitals and annexures to this Employment Agreement and any amendments made to this Employment Agreement by the Parties in writing;

1.4 "Applicable Law" means any statute, law, regulation, ordinance, rule, judgment, notification, order, decree, byelaw, permits, licenses, approvals, consents, authorizations, government approvals, directives, guidelines, requirements or other governmental restrictions, or any similar form of decision of, or determination by, or any interpretation, policy or administration, having the force of law of any of the foregoing, by any authority having jurisdiction over the matter in question, in effect as on the Execution Date or thereafter;

1.5 "Articles of Association" or "Articles" means the articles of association of the Company as amended from time to time.

1.6 "Board" means the board of directors of the Company;

1.7 "Business" shall mean the business of the Company as set out in Recital A;

1.8 "Cause" means any of the following: (a) there has been a gross negligence and wilful misconduct on the part of the Employee in the course of his/her employment with the Company; (b) the Employee has engaged in fraud, embezzlement, theft, commission of a felony, or dishonesty etc. in the course of his employment with the Company; (c) the Employee has engaged in such behaviour which is detrimental to the interests of the Company; (d) a breach by the Employee of any of the terms and conditions of this Agreement; (e) any unauthorised or negligent disclosure of confidential information by the Employee; or (f) the Employee is charged with any felony or crime;

1.9 "Competitor" means (i) any Person ("Relevant Person") who is, directly or indirectly, engaged in or intends to engage in, any commercial activity, which is the same as and/or similar to, the Business, or which competes with the Business; and/ or (ii) any Person in Control of, Controlled by or under common Control with, the Relevant Person;

1.10 "Confidential Information" means and includes, without limitation, information relating to Business, including trade secrets and/ or any non-public information that the Company, Affiliate or any third party designates as being confidential or which, under the circumstances surrounding disclosure, should reasonably be understood to be confidential.

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1.11 "Control", as used with respect to any Person means the direct or indirect beneficial ownership of or the right to vote in respect of, directly or indirectly, more than 50% of the voting shares or securities of a Person and/or the power to control the majority of the composition of the Board of directors of a Person and/or the power to create or direct the management or policies of a Person by contract or otherwise or any or all of the above;

1.12 "Effective Date" shall mean the date of appointment of the Employee of the Company;

1.13 "Execution Date" shall mean the date of execution of this Agreement;

1.14 "Intellectual Property" shall mean and includes, but is not limited to, discoveries, concepts, ideas, improvements, get-up, plans, models, patents, design patents, designs, databases, software, applications, drawings, trademarks, patterns, trade names, service marks, brands, slogans, commercial symbols, logos, other designations, inventions, utility models, trade secrets, circuitry, know-how and/or any other industrial and/or intellectual property rights.

1.15 "Person" means any natural person, company, corporation, partnership, limited liability partnership, proprietorship, Hindu undivided family, trust, society, artificial juridical person, statutory body, union, association, government, any agency, political party and/ or any other entity, by whatever name called;

1.16 "Relative" shall have the same meaning as defined under the Act;

2. EMPLOYMENT

2.1 The Company has employed the Employee to render services set out in Annexure 1 and to meet the targets set out in Annexure 2 from the Effective Date and the Parties hereby, agree to the terms of this Agreement after going through it in entirety and with free consent.

2.2 The Employee represents and warrants to the Company that, as on the Effective Date: 25/01/2025

(a) he is free to enter into employment with the Company without violation of any third party rights and that the employment with the Company shall not result in a violation of any agreement or restrictive condition that he may have with any third party including former employers;

(b) he is not a party to any arrangement or agreement which will compromise his ability to carry out the duties for the Company;

(c) all information provided by the intern in this Agreement is truthful and accurate;

(d) he is competent to enter into this Agreement; and

(e) he has been duly apprised about the Services and the Targets and confirms that she is fully capable of performing the Services and meeting the Targets.

3. PLACE OF WORK

3.1 The principal place of work from where the Employee shall perform services for the Company will be the in Delhi NCR

3.2 The Employee shall report to Drishti Medhi, COO, Director and Chinmaye Jain, Growth and strategy head

4. INTERNS'S REPRESENTATIONS AND WARRANTIES

The Intern represents and warrants as under:

4.1 The Intern shall devote his full time and attention to provide Services, achieve Targets and perform such other duties as may be required by the Company from time to time.

4.2 The Intern shall be subject to and bound by, the policies, rules and regulations of the Company, as may be in force from time to time.

4.3 The Intern shall not commit any act or misconduct, or commit any acts subversive to the discipline of the Company, or otherwise misbehave in a manner that would be construed as being in violation of the rules of the Company for the time being in force.

4.4 The Intern agrees that during the term of his employment, he shall work exclusively for the Company and will not perform or undertake to perform any work for any other Person without the specific prior written permission of the Company for each such instance of work.

4.5 The Intern shall not execute any document, make any representations or enter into any transaction, in the name of and/ or on behalf of the Company, unless expressly authorised to do so, in writing, by the Company. The Company shall not be bound by any action of the Intern in violation of this Clause 4.5 and the said action shall be deemed to have been carried out by the Employee in its personal capacity and not in furtherance of his employment with the Company and shall not create any vicarious liability on the Company. As such, any liability arising out of such action, shall be the sole responsibility of the Employee and in the event, the Company is held liable for the same, the Employee shall fully indemnify the Company, its shareholders, officers, directors, employees, and professional representatives and make good the said liability within 15 days from the date of creation of such liability.

5. LEAVE

5.1 The leave policy of the Company is as under:
(A) Casual Leaves – 2 days per month
(B) Medical Leaves – as and when necessary
The working hours and holidays shall be intimated by the Company from time to time

5.2 The Intern shall have to inform the Company in advance before taking any leave and such leave

6. CONFIDENTIALITY

6.1 The Intern is obligated, both during the period of employment and after termination of the employment, irrespectively of how the employment ceases, to observe complete confidentiality in relation to any person and company data about any Confidential Information that have come to the intern's attention during the period of Employment.

6.2 Any breach of Confidentiality obligations by The Intern shall lead to liability and may constitute grounds for dismissal and/or render the intern liable to legal action and the the Intern shall be liable to make good the losses incurred by the Company pursuant to such breach by paying damages equivalent to the revenue generated by the Company in the past 12 months.

7. INTELLECTUAL PROPERTY

7.1 The Company assumes all rights, title and interest to all Intellectual Property created by the Intern. For the purposes of this Agreement, Such Intellectual Property the Company's right to the Intellectual Property is unrestricted, global, exclusive and perpetual and includes all forms of exploitation in any media and in any form and by any technical means, in the original or altered form, in translation or adaptation.

7.2 For the avoidance of doubt, the the Intern's full transfer of the Intellectual Property also includes the Company's right to market, promote, advertise, distribute, sublicense, copy and/or to distribute or sell, exclusively or non-exclusively, the Intellectual Property, in whole or in part, to any third parties as the Company deems appropriate from time to time.

7.3 The Intern shall promptly inform the Company in writing of any inventions made. The Company shall have the right to patent or register any Intellectual Property, or to seek other Intellectual Property Right protection, the Intern shall, also after any termination of employment, provide all reasonably necessary assistance to the Company in this regard, including but not limited to signing and execution of necessary documents.

7.4 The Intern hereby irrevocably appoints the Company to be his or her attorney in the The Intern's name and on Intern's behalf to execute and do any such instruments or things and generally to use his or her name for the purpose of giving to the Company or its nominees the full benefit of the provision of this Clause

8. RESTRICTIONS ON USE OF EMAIL AND INTERNET

8.1 The Company's electronic mail system, internet subscription and all other data systems are the exclusive property of the Company and shall as far as possible be used by the Intern solely in connection with the Employee's work for the Company.

8.2 The Intern will not infringe any rights or violate any applicable legislation while using the Company's email system, internet subscription or other data systems.

8.3 The Intern is aware that the Company has complete access to all material and email correspondence and an overview of internet usage that is saved in or performed via the Company's data system. Any examination performed by the Company shall be in accordance with the Information Technology Act, 2000 and allied rules as applicable at any time.

9. NON-COMPETE AND NON-SOLICIT

9.1 The Intern covenants and agrees that during the course of his employment starting from the Effective Date the Intern shall not:
(A) carry on or participate (whether as a partner, shareholder, principal, agent, director, employee or consultant) in any business and/ or activity which is the same as or substantially similar to the Business, including in the business of any Competitor, other than through the Company;
(B) render any services to a Competitor or enter into employment with any of the Competitors;
(C) solicit or influence or attempt to influence any client, customer or other Person to direct its purchase of the products and/or services of the Company to itself or any Competitor; and/or
(D) solicit or attempt to influence any person, employed or engaged by the company (whether as an employee consultant, advisor or distributor or in any other manner) to terminate or otherwise cease such employment or engagement with the company or become the employee of or directly or indirectly offer services in any form or manner to himself or any other person which is a competitor of the Company.

9.2 The Intern covenants and agrees that during the course of his employment starting from the Effective Date the Intern shall not, directly or indirectly: (A) attempt in any manner to contact any client/customer or solicit from any client/customer, except on behalf of the Company, business of the type carried on by the Company or to persuade any Person, which is a client/customer of the Company to cease doing business or to reduce the amount of business which any such client/customer has customarily done or might propose doing with the Company or damage in any way the business relationship that the Company has with any customer/client, whether or not the relationship between the Company and such client/customer was originally established in whole or in part through his efforts; or (B) employ or attempt to employ or assist anyone else to employ any person who is in the employment of the Company or was in the employment of the Company at any time during the preceding 12 (twelve) months.

9.3 The Intern undertakes to ensure that all business opportunities known to her or made known to him at any time, with respect to and/or connected with the Business are referred to the Company.

10. PROBATIONARY PERIOD

10.1 The probationary period shall be a month. During the probationary period, either Company or intern may terminate employment with a written Notice.

10.2 If the Intern has been absent from work during the probationary period, the Company may extend the agreed probationary period by a period corresponding to the duration of such absence. The Company shall in such a case inform the intern in writing of such an extension prior to the expiry of the probationary Period.

11. REMEDIES

11.1 Notwithstanding anything contained herein, the Intern acknowledges that a breach of any of the covenants contained in this Agreement could result in irreparable injury to the Company for which there might be no adequate remedy at law, and that, in the event of such a breach or threat thereof, the Company shall be entitled to obtain remedies available under Applicable Law including but not limited to injunctive relief through any court of competent jurisdiction. The injunctive remedies are cumulative and are in addition to any other rights and remedies that the Company may have at law or in equity

12. TERMINATION

12.1 After the probationary period, either Company or intern may terminate intern's employment with Company on 1 month advance, written notice, The period of notice shall be calculated from the first day of the calendar month immediately following the month in which notice was given.

12.2 Upon termination of employment, the Intern shall return to the Company all property in the intern's possession, custody or control belonging to the Company, Intellectual Property, Confidential Information including but not limited to business cards, credit and charge cards, keys, security and computer passes, mobile telephones, personal computer equipment, original and copy documents or other media on which information is held in the Employee's possession relating to the business or affairs of the Company or Affiliates. The Intern cannot in any circumstances exercise any lien, or any other right to withhold performance or any material that is in the intern's possession. 12.3 Subject to the other terms of this Agreement upon cessation of this Agreement for any reason (either by of way termination by the Company or resignation by the Intern or retirement of the Intern e in accordance with Company policies), the intern shall cease to be an employee of the Company.

13. CODES OF CONDUCT, OTHER AGREEMENTS AND PROVISIONS

13.1 The Intern shall comply with all codes of conduct and all other rules and regulations applicable to the intern's duties and to the business of the Company.

13.2 The Intern shall comply with the Company's prevailing work instructions, employment rules and all other Applicable Laws from the Effective Date.

14. DISPUTES

14.1 The Parties shall seek to resolve any dispute regarding the interpretation of clauses of the Agreement through negotiations.

14.2 If the dispute is not resolved through negotiations, it shall be referred to arbitration to be adjudicated by a sole arbitrator mutually appointed by both the parties. The hearings will be held in Guwahati.

14.3 This Agreement shall be interpreted in accordance with and governed by the laws of India without regard to any conflict of laws principles. All disputes arising out of or in connection with this Agreement shall be subject to the sole and exclusive jurisdiction of the courts of Guwahati.

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The Agreement has been executed in two original copies, of which each party has received one copy.

3rd Jan 2025

On behalf of Company:

For, QUICK GHY PRIVATE LIMITED
Drishti Medhi
Director

Drishti Medhi
COO, Director
Quick Ghy Private Limited

AI ENGINEER Intern

Saxena

Lakshya Saxena